

# House Rules & Policy Documents

## Review Comments and Recommended Responses

Association of Apartment Owners of Nā Hale O Mākena · v2026-08-02D

**FOR BOARD DISCUSSION — NO POLICY IS CHANGED BY THIS DOCUMENT**

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# 1 About This Document

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## 1.1 Purpose

This document consolidates the two reviews received on the July 2026 policy drafts and states, for every point raised, what the reviewer asked for, what the current policy language actually says, and what — if anything — is recommended in response.

Two reviews are covered:

| Reviewer            | Role                 | Source                                                                 | Items |
|---------------------|----------------------|------------------------------------------------------------------------|-------|
| <b>Molly Duncan</b> | Resident Manager     | PDF comments returned on three documents, received August 2, 2026      | 11    |
| <b>Paul Reshke</b>  | Director / Treasurer | Email "Draft House Rules – Comments," Friday, July 31, 2026, 9:32 p.m. | 28    |

Nothing in this document changes any policy. It is a review record prepared for Board consideration.

## 1.2 Order of Precedence

Where the two reviews point in different directions, the following order governs, and each entry below is tagged with the tier that decided it:

| Tier     | Authority                                                                              | Effect                                                      |
|----------|----------------------------------------------------------------------------------------|-------------------------------------------------------------|
| <b>1</b> | Federal and state law — Fair Housing Act, HRS Chapter 514B, HRS Chapter 290, FCC rules | Overrides both reviewers. Not a matter of preference.       |
| <b>2</b> | Governing documents — recorded Declaration, By-Laws and their recorded amendments      | Overrides both reviewers.                                   |
| <b>3</b> | <b>Resident Manager (Molly Duncan)</b>                                                 | Prevails over Board review comments where the two conflict. |
| <b>4</b> | Board review (Paul Reshke)                                                             | Yields to all of the above.                                 |

Where the Resident Manager raised a concern without proposing wording, the recommended language is derived from her concern alone. A competing formulation from the Board review is not used as a source in those sections; it is recorded separately as a dissent.

## 1.3 Standard Applied to Board-Review-Only Sections

For sections raised in the Board review where the Resident Manager did not comment, the default is to **keep the policy as written**. A change is recommended only where there is a legal or governing-document requirement, or strong rational support — a genuine drafting defect, an internal contradiction, or a plain error.

Of the 24 points raised by the Board review alone, **12 result in a recommended change** and 12 keep the policy as written.

**"It requires Board approval" is not a reason to leave language alone.** These House Rules are a proposal; every rule in them awaits the Board's approval, so that observation is true of the entire document and cannot distinguish one provision from another. Where a comment is well placed, the recommendation is

a redraft — and the Board approves or rejects the redraft when it approves or rejects the rules. Where a recommendation involves a judgment the Board may reasonably make differently, this document states the recommendation **and** the alternative, so the choice is presented rather than deferred. Section 5 collects those points.

### 1.4 Important — the Board Review Used an Earlier Draft

**The Board review was performed against a House Rules draft that predates the current one, and the section numbering has since changed.** The reviewed draft falls in the v2026-07-24B through v2026-07-28B range; the current draft is v2026-07-30A.

Sections 3, 8 and 9 were renumbered in between. All other references map unchanged.

| As cited in the review | Subject                                  | Current draft            |
|------------------------|------------------------------------------|--------------------------|
| 3.6                    | Absent Owners; On-Island Representatives | folded into <b>8.1.2</b> |
| 3.7.2                  | Lease Addendum                           | <b>3.6.2</b>             |
| 3.7.3                  | Filing                                   | <b>3.6.3</b>             |
| 8.3                    | Windows                                  | <b>8.2</b>               |
| 8.4.2                  | Antennas and Reception Devices           | <b>8.3.2</b>             |
| 8.8                    | Maintenance, Loading and Risk            | <b>8.7</b>               |
| 8.10                   | Maintenance Responsibilities             | <b>8.9</b>               |
| 9.4                    | Children and Swimming Ability            | folded into <b>9.1</b>   |
| 9.5                    | Health and Hygiene                       | <b>9.4</b>               |

Every entry below quotes the **current** text and shows both numbers. Three Board-review requests turn out to have been satisfied already in the current draft — a direct consequence of the review having been done against the older version.

### 1.5 How to Read Each Entry

Each entry carries the same four parts: the **source** of the comment, the **comment** itself, the **existing text** quoted from the current draft, and either a **recommended rewording** or a statement of **why no change is recommended**.

Status labels used throughout:

| Label                                   | Meaning                                                              |
|-----------------------------------------|----------------------------------------------------------------------|
| <b>CHANGE RECOMMENDED</b>               | New or revised language is proposed                                  |
| <b>NO CHANGE — ALREADY ADDRESSED</b>    | The current draft already does what was asked                        |
| <b>NO CHANGE — REQUIRED BY LAW</b>      | The provision exists because law compels it                          |
| <b>NO CHANGE — GOVERNING DOCUMENT</b>   | The recorded Declaration or By-Laws settle the point                 |
| <b>NO CHANGE — RECOMMENDED RETAINED</b> | Assessed on the merits; the current language is recommended to stand |
| <b>NO CHANGE — RECOMMENDED AGAINST</b>  | The change was considered and is recommended against, with reasons   |

| Label                                | Meaning                                                        |
|--------------------------------------|----------------------------------------------------------------|
| <b>NO CHANGE — DOCUMENT REQUIRED</b> | Cannot be completed without a document not presently available |
| <b>NO CHANGE — NONE REQUESTED</b>    | The reviewer expressed agreement                               |

## 2 Proposed House Rules

Current draft: NHOM\_House\_Rules\_Proposed\_v2026-07-30A. Entries appear in rule-section order, not in the order the comments were made.

### 2.1 Section 1.3 — Who to Call

Source: Board review (Paul Reshke) · cited as 1.3 · numbering unchanged

**Comment.** "The draft is providing DMI's general phone number for Rena. I had proposed using Rena's direct-dial landline at (808) 866-5979."

**Existing text — current 1.3, Managing Agent row.** "Destination Maui, Inc. (DMI) — the Association's managing agent. Account executive for the Association: **Rena Tamura** — direct (808) 866-5979 — rena@destinationmaui.net — **do not contact except in an emergency; see below**"

**NO CHANGE — ALREADY ADDRESSED.** The current draft already carries Rena Tamura's direct line, (808) 866-5979, and no longer shows DMI's general number in that row. The change was made in the draft dated July 28, 2026, after the version the review was performed against.

### 2.2 Section 2.1 — Defined Terms: "Cabana"

Source: Board review (Paul Reshke) · cited as 2.1 and 10 · numbering unchanged

**Comment.** "'Cabana' is not a term used at NHOM. Pavilion is the legacy term used to describe the location of the annual owner meeting, for example. The term 'Cabana' is only found in the 2017 Rules and Regulations document. The 2003 rules document and prior used 'pavilion'." Repeated at Section 10: "NHOM refers to this space as the Pavilion."

**Existing text — current 2.1.** "**Cabana** — the Recreation Cabana and its adjoining lanai and deck area, referred to historically as the Pavilion. See 10."

**NO CHANGE — GOVERNING DOCUMENT (Tier 2).** The recorded Declaration describes this common element as "the resident manager's residence, swimming pool and jacuzzi, **the cabana** with kitchen, workout room, lanai, and men's and women's restrooms." The word "Pavilion" appears in neither the recorded Declaration nor the recorded By-Laws.

The House Rules will be consistent with the recorded Declaration regardless of the term used in prior rules documents. The existing definition already records "Pavilion" as the historical term, which preserves the continuity the review is concerned with.

## 2.3 Section 2.1 — Defined Terms: "Guest"

Source: Board review (Paul Reshke) · cited as 2.1 · numbering unchanged

**Comment.** "The definition of 'guest' (not occupying an apartment overnight) does not work with how the term is being used in the balance of the document."

**Existing text — current 2.1. "Guest"** — a person present at the Project at the invitation of an owner or occupant who is not occupying an apartment overnight."

**CHANGE RECOMMENDED — strong rational support.** This is a genuine internal contradiction, not a preference. Section 4.2 is titled "Length of Guest Stays" and governs "a guest occupying an apartment without the owner in residence for more than thirty (30) consecutive days" — an occupancy the definition in 2.1 says is not a guest at all. The rule and the definition cannot both stand as written.

### Recommended rewording of the 2.1 definition:

**Guest** — a person present at the Project at the invitation of an owner or occupant, whether or not that person stays overnight, who is not an owner, a tenant, or another occupant of the apartment. A guest whose stay exceeds the limits in 4.2 is treated as a tenant, and the occupancy becomes subject to 3.3.

## 2.4 Section 3.6.2 — Lease Addendum

Source: Board review (Paul Reshke) · cited as 3.7.2 → now 3.6.2

**Comment.** "This would be a new rule. I am OK with this."

**Existing text — current 3.6.2.** "Every lease must include, or be accompanied by, a signed addendum in which the tenant acknowledges receipt of the House Rules and agrees to be bound by them. A copy must be filed with the Resident Manager before occupancy."

**NO CHANGE — NONE REQUESTED.** Recorded as reviewed and agreed.

## 2.5 Section 3.6.3 — Filing

Source: Board review (Paul Reshke) · cited as 3.7.3 → now 3.6.3

**Comment.** "Prior versions of the rules required a copy of the lease agreement to be provided to Molly. Why not keep this requirement?"

**Existing text — current 3.6.3.** "The owner must file with the Resident Manager, before occupancy, the tenant's name, the lease commencement and expiration dates, and the tenant's telephone and email."

**CHANGE RECOMMENDED — rational support.** The prior requirement was dropped without a stated reason, and 3.6.2 already requires the signed addendum to be filed with the Resident Manager, so the filing mechanism exists. Restoring the lease copy gives the Resident Manager the ability to verify the term against 3.3 and 4.2 rather than relying on the owner's own summary of the dates.

**Recommended rewording:**

The owner must file with the Resident Manager, before occupancy, a copy of the lease agreement together with the tenant's name, the lease commencement and expiration dates, and the tenant's telephone and email. The Resident Manager will treat the lease copy as a confidential Association record.

## 2.6 Section 4.2 — Length of Guest Stays

*Source: Board review (Paul Reshke) · cited as 4.2 · numbering unchanged*

**Comment.** Three related points: "My daughter plans to live in our unit for months at a time without my or Martha's presence. Based on this section, I would violate the prohibition of short-term rentals. Perhaps an exception should be made for immediate family members." · "This section really doesn't address the revolving door issue of the prior owner of D302, where there could be a different party occupying the unit every two weeks. Perhaps the terms used in the existing Declaration and Bylaws cover this situation." · "It is not clear to me which scenarios the language in this section 4.2 is attempting to prevent."

**Existing text — current 4.2.** "A guest occupying an apartment without the owner in residence for more than thirty (30) consecutive days, or more than sixty (60) days in any twelve-month period, is deemed a tenant and the occupancy is subject to 3.3."

**CHANGE RECOMMENDED — strong rational support.** The point is well placed, and the defect is larger than the comment suggests.

Section 3.3 sets a minimum rental period of **one hundred eighty (180) consecutive days**, required by Declaration §8(a) as amended in 2009. Section 4.2 deems any guest staying more than thirty days without the owner in residence "a tenant... subject to 3.3." Applied to the example given, an owner's adult daughter staying four months without paying rent is deemed a tenant, is measured against a 180-day minimum she does not meet, and places the owner in violation — for a family visit involving no rental at all.

Declaration §8(a) governs apartments that are **rented**. Section 4.2 as drafted extends that restriction to occupancies involving no consideration whatever, which the governing document does not require and which no purpose of the rule supports.

**Recommended rewording — 4.2 is replaced in full:****4.2 Length of Guest Stays**

A guest occupying an apartment without the owner in residence is subject to registration under 4.1, the occupancy limits in 3.5, and the owner's continuing responsibility for the guest's compliance with these House Rules.

**(a) Occupancy for consideration.** Any occupancy in exchange for rent or other consideration, of whatever duration and however described, is a rental and is subject to 3.3 and to the leasing requirements of 3.6.

**(b) Occupancy without consideration.** An occupancy by an owner's immediate family, or by another invited guest, without rent or other consideration is not a rental and is not subject to 3.3, whatever its length. **Immediate family** means the owner's spouse or reciprocal beneficiary, children, stepchildren, parents, stepparents, siblings, grandchildren and grandparents, and the spouse of any of them.

**(c) Extended non-family occupancy.** An occupancy without consideration by a person who is not immediate family, exceeding **ninety (90) consecutive days or one hundred eighty (180) days in any twelve-month period**, must be disclosed to the Resident Manager, who may require the owner to confirm in writing that no consideration is being paid.

**(d) Repeated short occupancies.** Where an apartment is occupied by a succession of different guests or occupants without the owner in residence — **more than six (6) separate occupancies in any twelve-month period**, or any pattern of turnover consistent with transient use — the Association may treat the pattern as evidence of a violation of 3.3 under 3.4.1, whether or not any single occupancy exceeds a period stated above.

**How this answers each of the three points.** Subsection (b) resolves the immediate-family problem and states the boundary rather than leaving it to be argued. Subsection (d) reaches the D302 revolving-door pattern, which the current text genuinely cannot: a succession of two-week occupancies never trips a thirty-day threshold, and turnover — not duration — is what distinguishes transient use. Subsections (a) and (b) together answer the question of what 4.2 is for: it separates rentals, which the Declaration restricts, from guest occupancy, which it does not.

**Two figures are recommendations rather than derived values.** The ninety-day disclosure threshold in (c) and the six-occupancy trigger in (d) are set to catch the pattern without burdening ordinary use; both are for the Board to confirm. See Section 5.

**2.7 Section 5.2.1 — Quiet Hours**

*Source: Board review (Paul Reshke) · cited as 5.2.1 · numbering unchanged*

**Comment.** "The 2017 version of the House rules did not provide so-called quiet hours. The 2003 version did — 10:00 pm – 8:00 am. I am OK with adding quiet hours. Whether it starts at 9:00 pm or 10:00 pm is up to the Board. I am OK with either start time."

**Existing text — current 5.2.1.** "Quiet hours are 9:00 p.m. to 8:00 a.m. daily. During quiet hours, no sound from an apartment, lanai, or common element may be plainly audible inside another



apartment with its doors and windows closed."

**NO CHANGE — RECOMMENDED RETAINED.** The reviewer accepts either start time, so no change is compelled — but a recommendation is more useful than a deferral. **Retain 9:00 p.m.**

The 2017 rules had no quiet hours at all and the 2003 rules used 10:00 p.m., so there is no continuous practice to preserve. Between the two candidates, 9:00 p.m. is the more protective and the more common standard in residential associations, and it aligns with the 9:00 p.m. end time already fixed for Cabana functions in Section 10, which is the most likely source of late noise. Adopting 10:00 p.m. would leave an hour in which a function must end but the noise standard has not yet tightened.

The Board may set 10:00 p.m. instead; the change is a single figure. See Section 5.

## 2.8 Section 5.8.1 — Association Cameras

*Source: Resident Manager (Molly Duncan), page 12 · and Board review (Paul Reshke), cited as 5.8*

**Resident Manager comment.** "Currently there is no signage indicating our camera use."

**Board review comment.** "There is a Board-adopted camera policy that can be summarized here and referenced."

**Existing text — current 5.8.1.** "The Association may install cameras on common elements for security purposes. Signage will disclose their presence. Recordings are Association records; access is governed by 20.7 and applicable law."

**CHANGE RECOMMENDED — Resident Manager comment.** The two comments describe the same gap from opposite directions: a policy exists on paper, and the signage it contemplates has not been posted. As written, the rule states a fact about the Project that is not currently true.

### Recommended rewording:

The Association may install cameras on common elements for security purposes. **Signage disclosing the presence of cameras will be posted at the Project entrance and in each monitored common area. The Association's camera policy adopted by the Board governs the placement and operation of the cameras and the retention, review, and release of recordings.** Recordings are Association records; access is governed by 20.7 and applicable law.

This change should not take effect ahead of the signage. See Section 6 — the signage is a Resident Manager action item to be completed before adoption.

**On the Board review's point.** The reference to the adopted camera policy is included above and needs nothing further to be adopted. Only one thing remains contingent on producing the policy: whether a one- or two-sentence summary of its actual terms should also be folded into 5.8.1. That is a refinement, not a blocker — an owner reading the rule as recommended already knows the policy exists and governs.



## 2.9 Section 6 — Smoking

Source: Board review (Paul Reshke) · cited as 6 · numbering unchanged

**Comment.** "Shannon had asked whether the Board was interested in designating a smoking area."

**Existing text — current 6.2.** "Smoking is prohibited on all common elements and limited common elements, including the pool and jacuzzi area, the Cabana and its lanai, the gym, walkways, stairwells, parking areas, and landscaped areas." The at-a-glance table in 6.2 permits smoking only inside an apartment, and on an owner's own lanai where smoke does not migrate.

**NO CHANGE — RECOMMENDED AGAINST.** Counsel asked the question rather than making a recommendation, so the answer is open. The recommendation is that the Association **not** designate a smoking area.

The reason is siting. The rule in 6.2 exists because smoke migrates, and on a parcel of this size there is no location far enough from apartment lanais, the pool and jacuzzi, the Cabana, and the gym for a designated area to avoid producing the drift the rule is meant to prevent. A designated area would also change the character of any resulting complaint: at present drift is caused by an individual violating a clear rule, whereas afterward it would be caused by a condition the Association itself created and sanctioned in a known location. The current prohibition is both easier to enforce and easier to defend, and 6.5 already preserves the reasonable-accommodation route for anyone who needs one.

If the Board decides otherwise, the change is mechanical: an exception in 6.2 and a corresponding row in the at-a-glance table. See Section 5.

## 2.10 Section 7 — Grills & Fire Safety

Source: Board review (Paul Reshke) · cited as 7 · numbering unchanged

**Comment.** "I would like to see this section reworded to reflect the fact that NHOM BBQ's are built in. The whole section reads as if one were using a portable grill at a vacation rental."

**Existing text — current 7.1.** "Only a grill of a type approved by the Board and installed as part of the lanai may be used. Free-standing grills, portable grills, and separate stoves or cooking appliances of any kind are not permitted on lanais or anywhere on the common elements."

**Current 7.2.** "NHOM's lanai grills are served by a **centralized piped LP-gas system supplied from an exterior tank**; there are no individual propane cylinders on the lanais or in the cabinets."

**Current 7.3** addresses gas accumulation "in the bottom of the enclosed cabinet beneath the grill" — a hazard specific to a built-in installation.

**NO CHANGE — ALREADY ADDRESSED.** Section 7 was rewritten after the reviewed draft to describe built-in lanai grills on a centralized piped LP-gas system. Portable grills are now expressly prohibited rather than regulated, individual propane cylinders are expressly stated not to exist at the

Project, and the safety guidance in 7.3 is written for the enclosed cabinet of a built-in unit. The concern is met in full by the current text.

## 2.11 Section 8.1.2 — Access to an Apartment When the Owner Is Absent

*Source: Resident Manager (Molly Duncan) and Robert Sutor, by agreement in meeting · absorbing Board review (Paul Reshke), cited as 3.6 "Absent Owners; On-Island Representatives" → now folded into 8.1.2*

**Resident Manager and President — agreed in meeting.** Each owner should be asked to provide the Association with a spare key, so the Resident Manager has immediate access in an emergency. Non-emergency access should occur only after notice to the owner identifying the scope of the inspection and the reason for it; the owner should be able to have a representative present; the inspection should be strictly confined to its stated scope; and the owner should have ample time to identify a local representative who can provide access and attend.

**Board review comment.** "I prefer the language used in the MS Word version. Only referencing this role here in terms of an emergency is too narrow."

**Question raised.** Whether the By-Laws or state law permit the Association to compel an owner to provide a spare key. When the Project was developed the Resident Manager held a skeleton key opening every door; many locks have since been replaced with custom and digital hardware, so that key no longer works on many apartments.

**Existing text — current 8.1.2** urges owners to keep a means of access on file, listing a lockbox, an access code, an on-island representative "authorized to admit the Resident Manager and to act for the owner **in an emergency**," or a spare key. It permits use of the access means without notice in an emergency, and reasonable advance notice for a non-emergency inspection. A Board-recommendation note states that "Because Bylaws §10.1 permits an owner to elect not to provide a key, making a physical access method mandatory would require a Bylaws amendment."

**For comparison — adopted House Rules v2026-07-01A.** "An absent owner, at his or her expense, shall have an agent, friend, or domestic employee conduct periodic inspections of a closed apartment, assuming responsibility for the apartment and the contents therein."

### CHANGE RECOMMENDED — 8.1.2 is replaced in full.

**First, the legal question, verified against the recorded instruments.** A mandatory spare key **cannot** be imposed by House Rule. Recorded By-Laws Article X, **Section 10.1 (Right of Access)** — the citation in the existing note is correct — grants the managing agent and Board-authorized persons a right of access for inspections and repairs, with advance request and at a time reasonably convenient to the owner, and immediate entry in an emergency whether or not the owner is present. It then provides:

"If the Apartment Owner **has elected not to provide keys** to the Apartment to the managing agent or resident manager and a forced entry is reasonably required in the event of an emergency, the Apartment Owner shall be solely liable for all costs and expenses arising in connection with such forced entry, including all costs of replacing or repairing any part of the Apartment or the common elements damaged by or in connection with the forced entry."

That language preserves the owner's election and fixes the consequence. A House Rule compelling a key would contradict §10.1, and By-Laws §2.5 subordinates rules to the By-Laws. State law does not supply the power either: **HRS §514B-137(b)** gives the Association an irrevocable right of *access* for emergency repairs, and **§514B-133** assumes some employees will hold keys — but neither creates a duty to deposit one.

**The design below therefore never compels a key.** It sits inside §10.1 rather than against it, and needs no By-Laws amendment. Its central move is to separate the two roles: a local representative is a workable answer for scheduled access and no answer at all in an emergency, and saying so plainly is more effective than a mandate would have been.

### **Recommended rewording — 8.1.2 replaced in full:**

#### **8.1.2 Access to an Apartment When the Owner Is Absent**

**(a) Means of immediate access — strongly urged, not required.** Every owner is strongly urged to keep on file with the Resident Manager a means of immediate access to the apartment: a spare key deposited with the Resident Manager; a lockbox holding a unit key, with the combination provided to the Resident Manager; or an access code to a digital lock on the entry door. An owner is not required to provide one.

**(b) A local representative is not a substitute in an emergency.** An owner may also designate an on-island representative under (f). That is a workable arrangement for a scheduled, non-emergency entry. **It is not a substitute for a means of immediate access in an emergency.** An emergency — a burst supply line, a fire, a gas odor — does not allow time to locate a representative, reach them, wait for them to become available, and wait again for travel to the Project. A representative may be unreachable, off-island, or too far away to arrive while the damage is still containable. Owners who rely on a representative alone should understand that in an emergency the Association will proceed without one.

**(c) Consequence of not providing a means of access.** By-Laws §10.1 provides that where an owner has elected not to provide keys to the managing agent or Resident Manager and forced entry is reasonably required in an emergency, **that owner is solely liable for all costs and expenses arising from the forced entry, including the cost of replacing or repairing any part of the apartment or any common element damaged by or in connection with it.** This rule states an existing obligation under the By-Laws; it does not create a new one.

**(d) Emergency access.** In an emergency or suspected emergency — including an actual or potential water leak, fire, gas odor, or other hazardous condition — the Resident Manager or another person authorized by the Board may enter the apartment immediately, whether or not the owner is present, **without prior request and without the owner's approval**, and may force entry if necessary, as provided by By-Laws §10.1 and HRS §514B-137(b). The Association will notify the owner as soon as reasonably possible that emergency access is being or has been taken, and what was done. **That notification is a courtesy and a record; it is not a precondition to entry, and the Association will not delay entry to obtain it.**

**(e) Non-emergency access.** The Association may enter to inspect or correct a condition threatening another apartment or the common elements, or to inspect, install, alter, or repair mechanical or electrical services or other common elements, as provided by By-Laws §10.1 and HRS §514B-137(a). For any such entry the Association will:

1. give the owner advance written notice stating the purpose of the entry, the reason it is necessary, and the specific scope of what will be inspected or done;
2. make a reasonable effort to schedule the entry on a date and at a time mutually convenient to the owner; and
3. allow the owner reasonable time to arrange for the owner's on-island representative, or another person of the owner's choosing, to be present.

The entry is **strictly confined to the stated scope**. The owner or the owner's designee may be present throughout.

**(f) On-island representative.** An owner's on-island representative is an individual in close proximity to the Project, other than the Managing Agent, authorized to admit the Resident Manager, to conduct periodic inspections of the apartment while it is closed, and to act for the owner generally in matters concerning the apartment during the owner's absence.

**(g) Owner's duty to afford access.** An owner must afford access for an entry conforming to (e). An owner who refuses is in violation of these House Rules, By-Laws §10.1, and HRS §514B-137(a), and is subject to 20.3 and By-Laws §2.4. **The Association will not force entry for a non-emergency inspection.**

**(h) Record of entry.** The Resident Manager will keep a record of every entry into an apartment under this section, whether emergency or non-emergency, stating the date, the time, the purpose, and the persons present. The record is available to the owner of the apartment on request.

*[Robert Sutor Recommended; Resident Manager agreed]*

**Can a non-emergency inspection be compelled?** Yes, where the inspection has a purpose nexus. By-Laws §10.1 grants access "for the purpose of making inspections or correcting any condition existing in an Apartment **and threatening another Apartment or the common elements**, or for the purpose of performing installations, alterations or repairs to the **mechanical or electrical services or other common elements**." HRS §514B-137(a) supplies the owner's duty: each owner "**shall afford** to the association...during reasonable hours, access through the owner's unit reasonably necessary for those purposes."

| Inspection                                              | Compellable                                                        |
|---------------------------------------------------------|--------------------------------------------------------------------|
| Water heater age, drain pan, leak-shutoff device        | <b>Yes</b> — failure threatens units below and the common elements |
| Plumbing, wiring, heat pump, utility tie-in fittings    | <b>Yes</b> — mechanical and electrical services                    |
| Lanai slab, railings, structure; sprinkler components   | <b>Yes</b> — common elements within the apartment                  |
| Suspected leak, mold, or odor affecting a neighbour     | <b>Yes</b> — a condition threatening another apartment             |
| General condition, housekeeping, décor, occupancy count | <b>No</b> — no nexus to another apartment or a common element      |
| Searching for House Rules violations at large           | <b>No</b> — §10.1 is not a search power                            |

This is why (e)(1) requires the notice to state the **reason**, not merely the scope: the stated reason is what makes the entry compellable, and a notice that cannot articulate one signals that the Association lacks the right. If an owner refuses, there is no self-help — By-Laws §6.5(a) permits forcible entry only where the violation "threatens an immediate, substantial and undeniable threat to life, limb or

property," which is the emergency case. For an ordinary refusal the remedies are the fine schedule in 20.3, attorneys' fees under By-Laws §2.4, and injunctive relief.

**What this resolves.** The Board review's point — that the on-island representative was drawn too narrowly — is met by (f), which restores the standing role the adopted rules give that person. **No By-Laws amendment is required for any part of this**, and the mandatory-key amendment previously contemplated is unnecessary unless the Board wants it for its own sake.

## 2.12 Section 8.2 — Windows

*Source: Board review (Paul Reshke), cited as 8.3 → now 8.2 · scope and facts corrected by Robert Sutor*

**Comment.** "There is a lanai screen policy (recall recent approval granted for D102) that should be mentioned here."

**Existing text — current 8.2** covers window tinting (8.2.1, prohibited), window treatments (8.2.2), and cleanliness (8.2.3). 8.2.3 makes each owner responsible for "keeping the owner's windows and screens clean and in good repair, **including cleaning the interior window surfaces and maintaining the window screens.**" No provision addresses lanai screens specifically.

### CHANGE RECOMMENDED — a clarification, not a new requirement.

**The factual position, corrected.** Lanai screens were installed on every lanai as part of the original build-out of the Project. Owners maintain and replace them at their own expense, and **no Board approval has ever been required to do so.** Any drafting that introduced an approval requirement would create an obligation that has never existed and imply that owners replacing screens had been out of compliance.

The only real gap is that the draft is silent on lanai screens while Section 18 and 8.3.1 (projections) could be misread as capturing them. A short clarification forecloses that reading.

### Recommended new subsection:

**8.2.4 Lanai Screens.** The lanai screens installed as part of the original construction of the Project are maintained, repaired, and replaced by the owner at the owner's expense. Replacement in kind requires no Board approval. Replacement screens should match the original screen and frame in type, colour, and finish.

*[Robert Sutor Recommended]*

**One question for the Board review.** If standard screens have never required approval, the "recent approval granted for D102" presumably covered something else — a screen enclosure, a screen door, or a non-standard replacement. Confirming what it actually covered will show whether anything beyond the subsection above is warranted. Listed in Section 7.

## 2.13 Section 8.3.2 — Antennas and Reception Devices

Source: Board review (Paul Reshke), cited as 8.4.2 → now 8.3.2 · resolved on the direction of Robert Sutor

**Comment.** "I do not understand why this exception to the rule of no antennas allowed is necessary."

**Existing text — current 8.3.2.** "The Association will not prohibit installation of a reception device protected by the Federal Communications Commission's Over-the-Air Reception Devices rule within an area of an owner's exclusive use or control. Such installations must, to the extent permitted by that rule: be located in the least visible place that permits acceptable signal; not project beyond the lanai railing; be secured against wind; not penetrate common element structure without approval under 18; and be removed and the area restored when no longer in use. All other antennas and dishes are prohibited on common and limited common elements."

### CHANGE RECOMMENDED — state the prohibition only.

**The legal position, for the Board's information.** The FCC's Over-the-Air Reception Devices rule, 47 C.F.R. §1.4000, preempts any private restriction that impairs the installation, maintenance, or use of a covered reception device within an area of an owner's exclusive use or control. The preemption operates whether or not our House Rules mention it. What the rule does **not** do is require the Association to recite the entitlement in its own rules — silence is lawful.

**The decision.** The House Rules will state the prohibition and not publish the exception. An owner who wishes to rely on the federal entitlement may raise it; the Association will not advertise it in a document sent to every owner.

### Recommended rewording — 8.3.2 replaced in full:

#### 8.3.2 Antennas and Reception Devices

Antennas, satellite dishes, and other reception devices are prohibited on the common elements and the limited common elements. No such device may be installed so as to project beyond a lanai railing, and none may penetrate or attach to any common element.

*[Robert Sutor Recommended]*

The second sentence is retained deliberately. It reads as prohibition language and concedes nothing, and it happens to state the placement restrictions the Association would want in hand if the federal entitlement is ever asserted.

**The consequence, recorded.** If a protected installation is asserted, the Association will be negotiating from a rule that is void as to that device rather than from stated conditions of placement and appearance. That trade-off was weighed and the flat prohibition chosen. This explanation is provided for the Board's understanding; **none of it appears in the House Rules themselves.**



## 2.14 Section 8.7 — Maintenance, Loading and Risk

Source: Board review (Paul Reshke) · cited as 8.8 → now 8.7

**Comment.** "The MS Word version of the rules has a strict prohibition of water beds, spas, and hot tubs in the units. I strongly agree with this rule. Is the Board possibly going to allow such?"

**Existing text — current 8.7, final sentence.** "Water beds, spas, and hot tubs require prior written Board approval and evidence of insurance."

**For comparison — adopted House Rules v2026-07-01A, 5.10.** "Water Beds. No waterbeds, hot tubs/Jacuzzis may be located or installed in Apartments."

**CHANGE RECOMMENDED — restore the adopted prohibition.** The comparison is accurate and the difference is real: the adopted rules prohibit outright, and the draft converted that into a conditional approval. The relaxation was introduced in drafting without a stated reason, and nothing in the record explains why the Association would want to take on the question.

The exposure that produced the original rule is unchanged. A filled water bed or spa concentrates several thousand pounds over a small footprint in a building whose apartments sit above other apartments, and the failure mode is a large volume of water released into the structure. Evidence of insurance addresses who pays afterward; it does not reduce the structural loading or the likelihood of the loss. Requiring the Board to assess a structural question case by case, on an owner's application, is also a poor use of the approval mechanism.

**Recommended rewording of 8.7 — final sentence replaced:**

Owners must maintain their apartments, fixtures, and equipment in good condition and repair so as not to affect other apartments or the common elements. No apartment or lanai may be loaded beyond its design capacity or altered so as to impair structural integrity. Owners and occupants assume all risk of loss to personal property within apartments and limited common elements. **Water beds, spas, and hot tubs may not be located or installed in any apartment or on any lanai.**

This restores the substance of adopted rule 5.10 and matches the position taken in the Board review.

## 2.15 Section 8.9 — Maintenance Responsibilities, Owner vs. Association

Source: Board review (Paul Reshke) · cited as 8.10 → now 8.9

**Comment.** "This proposed chart needs to be reviewed in consideration of the water leak policy adopted by the Board in October 2024."

**Existing text — current 8.9** is a component-by-component allocation table, prefaced: "It is a summary only and yields to the Declaration and Bylaws in any conflict — the allocation is fixed by those documents... where a document is silent the table says so rather than assuming a default."



**NO CHANGE — DOCUMENT REQUIRED.** The October 2024 water-leak policy is not present in the workspace and could not be located. The point is well taken: a Board-adopted water-leak policy will bear directly on the plumbing and water-apparatus rows of the table and on the unassigned utility tie-in fitting already flagged in the note beneath it.

Recommend producing the adopted policy and reconciling the table against it before adoption. Listed in Section 7.

## 2.16 Section 9.1 — Pool Safety and Owner Responsibility

Source: Resident Manager (Molly Duncan), page 20 · concurred in by Board review (Paul Reshke), cited as 9.4 → now folded into 9.1

**Resident Manager comment.** "At my previous association, Shannon Sheldon advised that we can no longer use age to speak to pool use. She recommended something along the lines of 'Use of pool by inexperienced swimmers requires supervision by a responsible adult.' Any mention of age is considered discriminatory."

**Board review — concurring.** "Shannon had previously advised that providing an age floor is age discrimination (don't recall which law). That is why the MS Word version does not have such language."

**Existing text — current 9.1, supervision bullets 1 through 3.**

"- **Infants, small children, and any person too short to stand at the deepest point of the pool with their head comfortably above water** must be accompanied by a parent or adult **at all times** and kept under **constant adult oversight. Under no circumstances may such a person be left unaccompanied in or at the pool.** - **Children under fourteen (14)** must be accompanied and directly supervised by a responsible person eighteen (18) or older. - **Any other person who cannot stand at the deepest point with their head above water** must be supervised within arm's reach by a competent adult."

**CHANGE RECOMMENDED — REQUIRED BY LAW (Tier 1).** Familial status is a protected class under the Fair Housing Act, 42 U.S.C. §3604, and rules that restrict or condition children's use of a common facility have repeatedly been found discriminatory where an ability-based rule would serve the same safety purpose. The age trigger must go.

The Resident Manager supplied the replacement standard — *"Use of pool by inexperienced swimmers requires supervision by a responsible adult"* — and it is used as the base text below, extended only as the safety obligations already in the section require.

**Recommended rewording — the three bullets are replaced by two:**

- **Use of the pool by inexperienced swimmers requires supervision by a responsible adult.** Any person who cannot stand at the deepest point of the pool with their head comfortably above water, and any inexperienced or non-swimmer, must be accompanied by a responsible adult **at all times** and kept under **constant adult oversight. Under no circumstances may such a person be left unaccompanied in or at the pool.**

- **Any other person who requires assistance in the water** must be supervised within arm's reach by a competent adult.

The revision keeps every safety obligation the current text imposes and removes only the age trigger, which is the element that creates exposure. The remainder of 9.1 — the no-lifeguard statement, the owner's responsibility for those they admit, the Resident Manager disclaimer, and the indemnity — is unaffected.

**Two related provisions are affected but are not changed here.** Section 9.9 excludes "children under five (5)" from the jacuzzi, and 11.4 sets a gym age floor of fourteen. Both rest on stronger non-age justifications than the pool rule — water temperature and equipment safety respectively — and both are common in association rules. They are referred to counsel as a single question rather than redrafted on assumption. See Section 7.

*Note on sourcing: counsel's advice reaches this document through two second-hand accounts and has not been confirmed with her directly. The Fair Housing Act principle stated above is independently established and does not depend on those accounts.*

## 2.17 Section 9.3 — Who May Use

*Source: Resident Manager (Molly Duncan), page 21 · also raised in Board review (Paul Reshke), cited as 9.3*

**Resident Manager comment.** "Many of our owners have children and grandchildren visiting and go over this number of guests in the pool. I'm not sure we need this rule. Thoughts?"

**Board review.** "Limiting an owner to bring four guests to the pool seems harsh. A few of our owners would violate this rule in the past. I prefer that a guest limit not be included in the rules. Also, four guests is less than the occupancy limit provided in these same rules. This rule would require the Jane Feusier family to visit the pool in shifts."

**Existing text — current 9.3.** "Use is limited to owners and occupants and their accompanying guests. **An owner or occupant may bring up to four (4) guests at one time** and must accompany them throughout their use of the pool area."

**CHANGE RECOMMENDED — Resident Manager comment governs (Tier 3).** Both reviews find the fixed cap of four unworkable, and the cap was an addition to the prior rules rather than a carry-forward. Nothing in law or the governing documents requires a numeric limit.

The recommended language follows the Resident Manager's concern — that the number is routinely exceeded by ordinary family visits — and removes the fixed figure while preserving a means of managing genuine crowding:

Use is limited to owners and occupants and their accompanying guests. An owner or occupant must accompany their guests throughout their use of the pool area. **When the pool area is busy, guests must yield to owners and occupants, and the Resident Manager may limit the number of guests per apartment.**

**Board review position, recorded and not adopted.** The Board review would remove any guest limit entirely, including the Resident Manager's discretion to impose one during crowding. Under the order of precedence in 1.2, the Resident Manager's approach governs where the two differ. The Board may of course elect the unrestricted version.

## 2.18 Section 9.4 — Health and Hygiene

Source: Board review (Paul Reshke) · cited as 9.5 → now 9.4

**Comment.** "Requiring all to shower before entering the pool would be a new rule and practice. Is this necessary?"

**Existing text — current 9.4.** "All users must shower before entering. Persons who are incontinent, including infants and toddlers, must wear waterproof swim pants. A swim diaper alone is not sufficient; it must be covered by a waterproof swim pant. Persons with an infectious or communicable condition, open sores, or bandaged wounds may not enter the water. Spitting, spouting water, and nose-blowing in the water are prohibited."

**CHANGE RECOMMENDED — the shower becomes a recommendation, not a requirement.** The observation is correct and the decisive fact is that **the Association has never required this**. A rule that would not be well received, that nobody intends to enforce, and that has no history at the Project weakens the provisions around it that do matter.

The sanitation rationale survives as the reason to encourage it: showering reduces the organic load that consumes free chlorine, which is what determines whether the disinfectant residual holds between service visits. That is a good reason to ask, not a good reason to compel.

**The remaining provisions stay mandatory.** They address transmission of infection rather than routine hygiene, and none was questioned.

### Recommended rewording:

**Users are encouraged to shower before entering the pool.** Persons who are incontinent, including infants and toddlers, must wear waterproof swim pants. A swim diaper alone is not sufficient; it must be covered by a waterproof swim pant. Persons with an infectious or communicable condition, open sores, or bandaged wounds may not enter the water. Spitting, spouting water, and nose-blowing in the water are prohibited.

*[Robert Sutor Recommended]*

## 2.19 Section 9.6 — Conduct

Source: Resident Manager (Molly Duncan), Owner Handout page 1 · applied here for consistency

**Comment.** "We already have the rule of no speakers at the pool. Headphones only. This is a common issue with guests. I suggest 'The use of speakers or other amplified devices is prohibited in the pool area. Please use headphones for personal audio'." Together with: "I think we should address cellphone usage

at pool and gym. Many residents/owners have complained about listening to someone's speakerphone calls in those locations."

**Existing text — current 9.6.** "No running, diving, horseplay, rough play, or excessive noise. Audio devices require headphones."

**CHANGE RECOMMENDED.** "Audio devices require headphones" reads naturally as covering music and does not obviously reach a telephone call taken on speakerphone, which is the conduct actually generating complaints.

Two refinements to the Resident Manager's proposed sentence, both preserving her substance — that nobody at the pool should have to listen to another person's device. First, headphones are not the only acceptable method: a device simply kept inaudible to others serves equally well, and mandating headphones invites the objection that the rule is arbitrary. Second, the complaint is not only the device. A speakerphone call is intrusive in both directions, and a person conducting an audible call is the disturbance whether or not the handset is on speaker.

**Recommended rewording:**

No running, diving, horseplay, rough play, or excessive noise. **Speakers and other amplified devices are prohibited in the pool area. Audio from a personal electronic device — including music, video, and telephone or video calls — must be used with headphones or otherwise kept inaudible to others in the pool area. Devices may not be used on speaker.**

**A person engaged in a telephone or video call whose side of the conversation is audible to others in the pool area must leave the pool area to continue the call, and may return when the call is finished.**

*[Robert Sutor Recommended]*

The second paragraph is confined to telephone and video calls. Ordinary conversation among people at the pool is untouched.

## 2.20 Section 9.8 — Pool Furniture

*Source: Resident Manager (Molly Duncan), page 22*

**Comment.** "I think it would be good to add that all pool furniture should be returned to its original position and umbrellas put down before leaving pool area."

**Existing text — current 9.8.** "Pool furniture may not be reserved by leaving belongings unattended, and may not be removed from the pool area without the Resident Manager's approval."

**CHANGE RECOMMENDED.** Purely additive; no conflict with any existing provision. Lowering umbrellas also reduces wind damage to Association property.

**Recommended rewording:**

Pool furniture may not be reserved by leaving belongings unattended, and may not be removed from the pool area without the Resident Manager's approval. **Before leaving the pool area, users must return all furniture to its original position and lower any umbrella they have raised.**

## 2.21 Section 9.9 — Jacuzzi Health Notice

Source: Resident Manager (Molly Duncan), page 22

**Comment.** "Do you think we should have signage at the hot tub with this information? We could make it small and not too intrusive looking."

**Existing text — current 9.9.** "Pregnant women, persons with heart conditions or high or low blood pressure, and persons taking medication should consult a physician before use. Continuous immersion should not exceed fifteen (15) minutes. Children under five (5) may not use the jacuzzi."

**CHANGE RECOMMENDED — post the signage.** A health-notice placard at a jacuzzi is standard practice and serves a second purpose beyond information: it is contemporaneous evidence that the warning was given, which matters if a user is ever injured. A warning that exists only in a rules document a guest has never read provides considerably less protection.

**Recommended rewording — one sentence added:**

Pregnant women, persons with heart conditions or high or low blood pressure, and persons taking medication should consult a physician before use. Continuous immersion should not exceed fifteen (15) minutes. Children under five (5) may not use the jacuzzi. **A copy of this notice is posted at the jacuzzi.**

The Resident Manager is authorized to procure a small placard. See Section 6.

**Note.** The final sentence of this section contains an age exclusion and is within the scope of the counsel question raised at 2.16. If counsel advises that it be recast, the recommended replacement is a temperature-based caution rather than an age bar.

## 2.22 Section 10 — Cabana

Source: Board review (Paul Reshke) · cited as 10 · numbering unchanged

**Comment.** "NHOM refers to this space as the Pavilion."

**Existing text.** Section 10 is titled "Cabana" throughout and governs reservations, deposit, capacity, hours, and cleanup for the space.

**NO CHANGE — GOVERNING DOCUMENT (Tier 2).** Resolved at 2.2 above. The recorded Declaration uses "cabana"; the House Rules will be consistent with it.

## 2.23 Section 10.8 — Parking for Functions

Source: Board review (Paul Reshke) · cited as 10.8 · numbering unchanged

**Comment.** "The first sentence needs work. What is the reference to '13'?"

**Existing text — current 10.8.** "The reserving owner must advise guests of 13 and is responsible for guest parking compliance. Functions expected to draw more than ten (10) vehicles require a parking plan approved in advance by the Resident Manager."

**CHANGE RECOMMENDED — strong rational support.** A genuine drafting defect. "13" is a bare cross-reference to Section 13, Parking & Vehicles, but read as ordinary prose it appears to be a missing word or a stray number. The same bare-numeral convention is used elsewhere in the draft, but nowhere else does it fall in a position where it reads as part of the sentence.

### Recommended rewording:

The reserving owner must advise guests of the parking rules in **Section 13** and is responsible for guest parking compliance. Functions expected to draw more than ten (10) vehicles require a parking plan approved in advance by the Resident Manager.

## 2.24 Section 11.6 — Gym, Prohibited

Source: Resident Manager (Molly Duncan), Owner Handout page 1

**Comment.** "I think we should address cellphone usage at pool and gym. Many residents/owners have complained about listening to someone's speakerphone calls in those locations."

**Existing text — current 11.6.** "No food, no glass containers, no dropping or slamming weights, no personal appliances, no removal of equipment, and no audio without headphones. Commercial personal-training sessions are prohibited without prior Board approval."

**CHANGE RECOMMENDED.** Same defect as 9.6 — the headphone rule does not clearly reach a speakerphone call — and the gym is the stronger case, being an enclosed room at closer quarters than the pool deck.

### Recommended rewording:

No food, no glass containers, no dropping or slamming weights, no personal appliances, and no removal of equipment. **Speakers and other amplified devices are prohibited. Audio from a personal electronic device — including music, video, and telephone or video calls — must be used with headphones or otherwise kept inaudible to others in the gym. Devices may not be used on speaker. A person engaged in a telephone or video call whose side of the conversation is audible to others in the gym must leave the gym to continue the call, and**



**may return when the call is finished.** Commercial personal-training sessions are prohibited without prior Board approval.

*[Robert Sutor Recommended]*

Drafted to match 9.6 word for word wherever the two sections address the same conduct, so an owner reading either finds the same standard.

## 2.25 Section 13.1.2 — Uncovered Stalls

*Source: Board review (Paul Reshke) · cited as 13.1.2 · numbering unchanged*

**Comment.** "The amendment to the Bylaws recorded on June 26, 2001 provides that 'no more than two vehicles per Apartment shall be registered and permitted to park at the Project'. Thus, each owner can have two cars on the property, one of which will use an uncovered space on a first-come first-served basis. This provision should be added to the rules. There is no need for a Board discussion."

**Existing text — current 13.1.2.** "Uncovered stalls throughout the Project are **unassigned** and available to owners, occupants, and guests on a first-come, first-served basis. Uncovered stalls are not appurtenant to any apartment and may not be reserved, marked, or treated as private."

The section carries a standing note: *"Board to review: owners are commonly understood to have the use of a second, uncovered stall. Nothing in the Declaration, its recorded exhibits, or the prior House Rules allocates uncovered stalls to individual apartments..."*

**CHANGE RECOMMENDED — GOVERNING DOCUMENT (Tier 2). Verified against the recorded instrument.** The 2001 By-Laws Amendment amends By-Laws §8.7(f)(i) in its entirety to read, in relevant part: *"Prior to using any parking space, Owners shall register with the managing agent or the resident manager, the make and the license number of all vehicles that will be parked in a parking space. No more than two vehicles per Apartment shall be registered and permitted to park at the Project.\*\*"*

The comment is correct on the substance. Two corrections to the citation as given: the instrument was executed June 18, 2001, and the recorded instrument number is 2001-096485. It amends §8.7(f)(i); the current 13.1.2 cites §8.7(f)(v).

### Recommended rewording:

Uncovered stalls throughout the Project are **unassigned** and available to owners, occupants, and guests on a first-come, first-served basis. Uncovered stalls are not appurtenant to any apartment and may not be reserved, marked, or treated as private. **No more than two (2) vehicles per apartment may be registered and parked at the Project. An apartment's second vehicle uses an unassigned uncovered stall on the same first-come, first-served basis as any other user.**

**On the standing note.** The two-vehicle cap resolves half of what the note flags — it establishes a per-apartment vehicle entitlement — but it does not allocate a specific uncovered stall to any apartment,

and it does not create exclusive use of a common element. The note should be narrowed accordingly rather than deleted, since the underlying question of whether owners hold an allocated second stall remains unanswered by the recorded documents.

## 2.26 Section 13.8 — Towing

*Source: Resident Manager (Molly Duncan), page 28 · and Board review (Paul Reshke), cited as 13.8 — the two conflict*

**Resident Manager comment.** "I will look into getting a contract and signage from a reputable towing company, as that is needed before we can tow anyone."

**Board review comment.** "The MS word version of the rules specifically omitted provisions for towing. In order for towing to be legal, a contract would need to be entered into with a towing company and signage would be required, which I regarded as an unnecessary cost and unsightly."

**Existing text — current 13.8.** "After written notice to the owner or occupant, or after seventy-two (72) hours' notice affixed to the vehicle where the responsible person is unknown, the Association may tow any vehicle parked in violation of these House Rules, at the vehicle owner's sole risk and expense, in accordance with HRS Chapter 290 and applicable county requirements. Vehicles blocking access, a fire lane, a driveway, or another owner's assigned stall may be towed immediately without prior notice. The Board will designate the towing company and post signage as required by law."

**NO CHANGE — Resident Manager position governs (Tier 3).** Both reviewers agree on the law and disagree on the policy. Neither reads the statute differently: HRS §290-11 conditions non-consensual towing on a designated tower and posted signage, which is exactly what the final sentence of 13.8 already provides for. The disagreement is whether the Association should have a towing remedy at all, given that cost.

Under the order of precedence in 1.2, the Resident Manager's position governs. Section 13.8 is retained as written, and she proceeds with the towing contract and signage. See Section 6.

**Board review position, recorded and not adopted.** That the towing provisions be omitted as an unnecessary cost and unsightly. The Board may elect this; it is a spending and appearance judgment properly the Board's, and choosing it would mean 13.8 is deleted rather than left unenforceable. **A towing rule with no contract and no signage is the one outcome to avoid** — it states a remedy the Association could not lawfully exercise.

## 2.27 Section 13.9 — Repairs and Washing

*Source: Resident Manager (Molly Duncan), page 28*

**Comment.** "This makes it sound like car washing is not allowed on the premises. We want people to use car washing areas and not wash in stalls and to clean up/rinse the area afterward. Maybe we need to discuss appropriate hours and days?"

**Existing text — current 13.9.** "No vehicle repairs, maintenance, fluid changes, or washing may be performed at the Project, except minor repairs necessary to make a vehicle operable enough to be removed. A drip pan must be used under any vehicle that leaks, and the responsible owner must clean any stain."

**CHANGE RECOMMENDED.** The current text prohibits washing outright, which contradicts the Project's actual practice and the existence of a designated wash area.

**Recommended rewording:**

No vehicle repairs, maintenance, or fluid changes may be performed at the Project, except minor repairs necessary to make a vehicle operable enough to be removed. **Vehicle washing is permitted only in the designated car-wash area and only during the days and hours posted there; washing a vehicle in a parking stall is prohibited. Users must rinse and clean the wash area immediately after use.** A drip pan must be used under any vehicle that leaks, and the responsible owner must clean any stain.

**On days and hours.** The recommendation deliberately points to a posted schedule rather than fixing hours in the rule, so they can be adjusted without a rules amendment. **Recommended initial schedule: daily, 8:00 a.m. to 6:00 p.m.** — after the early-morning lap-swimming period and ending before evening quiet hours, on every day of the week so that owners in residence for a weekend are not excluded. See Section 5.

**Consequential.** The Owner Handout states "No repairs or washing on site" and must change with this section. See 3.4.

## 2.28 Section 13.12 — Electric Vehicle Charging

*Source: Board review (Paul Reshke) · cited as 13.12 · numbering unchanged*

**Comment.** "This would be a new rule. A prior Board adopted essentially the same provisions a few years ago but the owner requesting such approval ultimately decided not to pursue electric charging."

**Existing text — current 13.12** comprises four subsections: right to install (13.12.1), application (13.12.2), owner responsibility (13.12.3), and a prohibition on extension-cord charging (13.12.4).

**NO CHANGE — REQUIRED BY LAW (Tier 1).** HRS §196-7.5 obliges a Hawaii association to permit the installation of an electric vehicle charging system in a stall the owner has the right to use, subject only to reasonable restrictions. The Association cannot decline to address the subject, and whether a prior request was ultimately withdrawn does not affect the obligation.

The observation is a useful precedent for the Board — the earlier provisions were evidently workable — but no change follows from it.

## 2.29 Section 13.13 — Solar Energy Devices

Source: Board review (Paul Reshke) · cited as 13.13 · numbering unchanged

**Comment.** "Why is this rule being proposed? What type of device is being considered?"

**Existing text — current 13.13.** "Consistent with HRS §196-7, the Association will not prohibit installation of a solar energy device on an area of an owner's exclusive use or control, subject to reasonable restrictions on placement and appearance imposed under 18 that do not materially impair the device's efficiency or materially increase its cost."

### CHANGE RECOMMENDED — the current text cites the wrong statute.

**HRS §196-7 does not apply to NHOM.** That section protects installation on a "single-family residential dwelling or **townhouse**." HRS §514B-140(c), Additions to and alterations of condominium, defines a townhouse as "a series of individual houses, having architectural unity and a common wall between each unit; provided that **each unit extends from the ground to the roof**." NHOM apartments are stacked — no apartment extends from ground to roof, and no owner owns a roof. The Project is neither.

The current 13.13 therefore recites an owner entitlement that does not exist here, and states it in the Association's own rules. That is the defect.

**The operative provision is HRS §514B-140(c)(1):** "The installation of solar energy devices by owners of condominium units shall be allowed **upon written consent of the board**." Board consent is the gate, and none of §196-7's efficiency and cost constraints apply.

### Recommended rewording — 13.13 replaced in full:

#### 13.13 Solar Energy Devices

No solar energy device may be installed at the Project without the prior written consent of the Board, as provided by HRS §514B-140(c)(1), Additions to and alterations of condominium.

*[Robert Sutor Recommended]*

One sentence, deliberately. It states a restriction and nothing else — no recital of owner rights, no enumeration of conditions that would read as a roadmap to installation.

**For the Board's information, not for the rules.** Because the apartments are stacked, every location where a device could physically be mounted is a common element or a limited common element — stucco, railings, lanai surfaces, walls, roofs — so the consent requirement reaches essentially any installation an owner could attempt. Separately, HRS §514B-140(c) defines "nonmaterial additions and alterations" to exclude anything that detracts from the appearance of the project, which supports treating a visible installation as a **material** alteration under §514B-140(b), requiring sixty-seven per cent owner consent. And because §514B-140(c) operates "subject to the provisions of the declaration," a **Declaration amendment** is the instrument capable of an outright prohibition. None of that appears in the rule; it is recorded here so the Board knows what authority it holds.

**Related.** Unit Modification Policy Section 2.3, Solar energy devices, is carried as an open Board decision and should be settled on this same analysis rather than separately.

## 2.30 Section 17.3 — No Interference

*Source: Board review (Paul Reshke) · cited as 17.3 · relaying a Resident Manager addition*

**Comment.** "See MS Word version. Molly had added specific mention of examples of vendors just to be clear to the owners."

**Existing text — current 17.3.** "Owners, occupants, and guests must not interfere with, obstruct, or direct Association vendors and contractors performing work for the Association."

**CHANGE RECOMMENDED — rational support.** The addition originated with the Resident Manager and its purpose is owner clarity. "Vendors and contractors" is accurate but abstract; an owner who redirects the landscaper or asks the pool service to attend to something in their own lanai will not necessarily recognise that conduct in the current wording.

### Recommended rewording:

Owners, occupants, and guests must not interfere with, obstruct, or direct Association vendors and contractors performing work for the Association — including landscaping and grounds crews, pool and jacuzzi service, pest control, window cleaners, elevator technicians, and building maintenance contractors. Requests concerning Association work are directed to the Resident Manager, not to the vendor.

## 2.31 Section 18 — Unit Modifications and Repairs

*Source: Board review (Paul Reshke) · cited as 18 · numbering unchanged*

**Comment.** "This section needs to be rewritten to conform with the final, adopted version of NHOM's Unit Modification Policy."

**Existing text — current Section 18, in full.** "All additions, alterations, improvements, modifications and repairs to an apartment, a limited common element, or a common element are governed by the Association's **Unit Modification Policy**, incorporated into these House Rules by reference. Owners and their contractors must read that Policy before any work begins. **Its requirements are not restated here.**" The section then summarises what the Policy covers, and gives the Resident Manager stop-work authority over non-compliant work.

**For comparison — the draft the Board review was performed against.** Section 18 was then titled "Renovations & Contractors" and ran to nine subsections (18.1 Board Approval Required, 18.2 Unit Modification Policy, 18.3 Licensed Contractor Required, 18.4 Contractor Requirements, 18.5 Work Hours, 18.6 Debris, 18.7 Water Shut-Off Coordination, 18.8 Completion and Inspection, 18.9 Unpermitted Work) that restated the Policy's content. It carried review tags reading [OVERLAP vs UMP

2.2] and [CONFLICT vs UMP 2.2 – material alterations also need 67% owner consent; this rule implies Board approval alone suffices].

**NO CHANGE — ALREADY ADDRESSED.** Section 18 was rewritten after the reviewed draft into a single incorporation by reference. The nine duplicating subsections are gone, the overlap and conflict tags with them, and the section now says in terms that the Policy's requirements "are not restated here." That is what the comment asked for, and it is the fourth request in this review already satisfied by the current draft.

**On adoption sequencing.** The Unit Modification Policy's status does not bear on this. The Policy and the House Rules go to the Board **together**, so neither has to precede the other, and the fact that the Policy is not yet adopted neither blocks a reference to it nor requires the House Rules to wait. Both are proposals; both are approved in the same action.

**One consequential fix**, folded into the document-wide item at 2.34: Section 18's phrase "governed by 20 of these House Rules" becomes "governed by Section 20, Enforcement and Fines, of these House Rules."

## 2.32 Section 19.4 — Water Heaters

*Source: Board review (Paul Reshke) · cited as 19.4 · numbering unchanged*

**Comment.** "This would be a new rule, and based on my knowledge, most units would be in violation. This will require some discussion."

**Existing text — current 19.4.** "Water heaters more than **twelve (12) years** old must be replaced. Water heaters must be installed in a drain pan plumbed to an approved drain or fitted with an approved leak-shutoff device. The owner must clearly and durably mark the water heater with its installation date, if that date is known. If no installation date is known or marked, the water heater is presumed to be original equipment — more than twelve (12) years old and non-compliant — and must be replaced, unless the owner verifies from the water heater's serial number or model that it is within the twelve-year age limit."

**CHANGE RECOMMENDED — add a compliance period.** The observation is almost certainly right. The buildings date from 2000, and the presumption clause is drafted so that an unmarked heater is non-compliant by default — so on the day the rules take effect a substantial number of owners would be in violation, each facing a replacement cost, with no period in which to comply.

The answer is not to drop the rule. The water-damage exposure is real, it is the single most common source of loss in a building of this type, and a failed heater in an upper apartment damages apartments below it as well as common elements. The defect is that the rule states a standard without stating when compliance is due.

**Recommended rewording — the existing text is retained and a compliance period added:**

Water heaters more than **twelve (12) years** old must be replaced. Water heaters must be installed in a drain pan plumbed to an approved drain or fitted with an approved leak-shutoff device.



The owner must clearly and durably mark the water heater with its installation date, if that date is known. If no installation date is known or marked, the water heater is presumed to be original equipment — more than twelve (12) years old and non-compliant — and must be replaced, unless the owner verifies from the water heater's serial number or model that it is within the twelve-year age limit.

**An owner has twenty-four (24) months from the adoption of these House Rules to bring a non-compliant water heater into compliance. Compliance must be achieved sooner if the apartment is transferred, or if work requiring approval under 18 is performed on the apartment, in which case it must be achieved before the transfer closes or before the work is completed.**

Twenty-four months lets an owner plan and schedule the work rather than treat it as an emergency, and the transfer and renovation triggers capture the occasions when the work is cheapest and least disruptive to do. **The length of the period is a recommendation** — the Board may set a different one. See Section 5.

### 2.33 Section 20.3 — How a Fine Works

*Source: Board review (Paul Reshke) · cited as 20.3 · numbering unchanged*

**Comment.** "Shannon had recommended that any fines policy be incorporated in full into these rules."

**Existing text — current 20.3** states that fining authority rests with the Board, specifies the contents and delivery of a violation notice, and sets out the complete schedule in a table: written warning with 14 days to correct; \$50 second notice; \$100 third notice; \$250 per day continuing, capped at \$5,000 per violation; \$1,000 immediate for damage, health-or-safety threats, harassment, or illegal conduct; and \$1,000 per occupancy plus \$250 per day for an illegal short-term rental.

**NO CHANGE — ALREADY ADDRESSED.** Counsel's recommendation is satisfied by the current draft. The fine schedule is set out in full within Section 20.3 rather than incorporated by reference to a separate policy document, which is what the recommendation called for.

**One related point, outside this comment.** The April 2017 fining policy that was recovered is **not** adopted, references a different association, and is inconsistent with HRS §514B-146. It has been used only as a source of owner-clarity language and should not be incorporated.

### 2.34 Document-Wide — Internal Cross-References

*Source: Robert Sutor · a drafting convention applying throughout, arising from the Board review's comment on Section 10.8 at 2.23*

**Direction.** A cross-reference to another section must never appear as a bare number. It must state that it is a section, give the section number, **and give the section title**, so a reader knows what is being pointed at without turning to it. The same applies to references between policy documents, which additionally name the document.

**Existing practice.** The current draft references other sections by bare numeral throughout — "requires Board approval under 18," "access is governed by 20.7," "the occupancy is subject to 3.3," "constitutes a nuisance under 5.1," "a reasonable accommodation under 1.8." A count of the current draft finds **44 such references across 26 distinct targets**. The heaviest are Section 18 (8 references), Section 20.2 (3), and Section 20 (3).

**CHANGE RECOMMENDED — applies document-wide.** A reader has no memory of what a section number contains, so a bare numeral forces them to stop and look it up. In running prose it can be worse than that: it can read as a missing word, which is exactly the defect the Board review identified at Section 10.8, where "must advise guests of 13" parses as a typographical error. That comment is not an isolated problem but the most conspicuous instance of a document-wide pattern.

**The convention:**

| Reference                  | Form                                                                                  |
|----------------------------|---------------------------------------------------------------------------------------|
| Within this document       | Section 18, Unit Modifications and Repairs                                            |
| To another policy document | Section 3.5, Termite and Powderpost Beetle Treatment, of the Unit Modification Policy |
| To a governing instrument  | By-Laws Section 10.1, Right of Access                                                 |
| To a statute               | HRS §514B-137, Upkeep of condominium                                                  |

**Examples of the change:**

| Current                                         | Becomes                                                                          |
|-------------------------------------------------|----------------------------------------------------------------------------------|
| "requires Board approval under 18"              | "requires Board approval under Section 18, Unit Modifications and Repairs"       |
| "access is governed by 20.7 and applicable law" | "access is governed by Section 20.7, Association Records, and applicable law"    |
| "the occupancy is subject to 3.3"               | "the occupancy is subject to Section 3.3, Minimum Rental Period; No Timesharing" |
| "constitutes a nuisance under 5.1"              | "constitutes a nuisance under Section 5.1, Nuisances"                            |
| "must advise guests of 13"                      | "must advise guests of the parking rules in Section 13, Parking & Vehicles"      |

**Two mechanical points.** Each title is resolved from the target document's actual current heading rather than from recollection, so a renamed section never leaves a stale reference behind. And where the same reference recurs within a single short paragraph, the title is given on first use only, so the text stays readable.

**Scope.** All 44 instances in the Proposed House Rules, and the same convention in the Owner Handout, the Unit Modification Policy, the Support Animal Policy, and any policy document produced hereafter. This is a standing drafting rule, not a one-time correction.

*[Robert Sutor Recommended]*

### 3 House Rules Owner Handout

Current version: NHOM\_House\_Rules\_Owner\_Handout\_v2026-07-30A. The handout is a plain-language summary; it carries no independent authority and must track the policy.

#### 3.1 Section 9 Pool & Jacuzzi — Furniture

Source: Resident Manager (Molly Duncan), Owner Handout page 1

**Comment.** "Please add: Please return all pool furniture to its original position and lower umbrellas before leaving the pool area."

**Existing text — Section 9 bullet.** "Don't reserve chairs with belongings. Never prop safety gates open."

**CHANGE RECOMMENDED.** Pairs with the policy change at 2.20.

**Recommended rewording:**

Don't reserve chairs with belongings. **Return furniture to its original position and lower umbrellas before you leave.** Never prop safety gates open.

#### 3.2 Section 9 Pool & Jacuzzi — Speakers and Amplified Audio

Source: Resident Manager (Molly Duncan), Owner Handout page 1

**Comment.** "We already have the rule of no speakers at the pool. Headphones only. This is a common issue with guests. I suggest 'The use of speakers or other amplified devices is prohibited in the pool area. Please use headphones for personal audio'."

**Existing text.** *There is none.* Section 9 of the handout contains no bullet on audio, speakers, or headphones — although the policy carries the rule at 9.6.

**CHANGE RECOMMENDED — handout defect.** This is the most consequential of the handout comments: an existing policy rule was omitted from the summary entirely, so owners reading only the handout would not know it applies. The Resident Manager identified it from the enforcement side, which is exactly where such a gap surfaces.

**Recommended new bullet in Section 9,** tracking the revised policy at 2.19:

**No speakers. Keep device audio to yourself — headphones, or off speaker and inaudible to others. If others can hear your side of a phone call, take it outside the pool area.**

### 3.3 Section 11 Gym — Speakerphone Calls

Source: Resident Manager (Molly Duncan), Owner Handout page 1

**Comment.** "I think we should address cellphone usage at pool and gym. Many residents/owners have complained about listening to someone's speakerphone calls in those locations."

**Existing text — Section 11 bullet.** "Up to 2 guests per apartment; stay with them. Headphones only."

**CHANGE RECOMMENDED.** Pairs with the policy change at 2.24.

**Recommended rewording:**

Up to 2 guests per apartment; stay with them. **No speakers. Keep device audio to yourself — headphones, or off speaker and inaudible to others. If others can hear your side of a phone call, take it outside the gym.**

### 3.4 Section 13 Parking & Vehicles — Car Washing

Source: consequential — not a reviewer comment. Arises from the policy change at 2.27.

**Origin.** No reviewer commented on this handout line. It is listed because adopting the policy change at 2.27 makes the existing handout text incorrect, and a handout that contradicts the policy is worse than one that omits it.

**Existing text — Section 13 bullet.** "No repairs or washing on site. Nothing stored in stalls."

**CHANGE RECOMMENDED — conditional on 2.27.** Adopt only if the policy change at 2.27 is adopted; if 13.9 stays as written, this line is already correct.

**Recommended rewording:**

**No repairs on site. Wash vehicles only in the designated car-wash area, during posted hours — never in a stall; rinse the area when you're done.** Nothing stored in stalls.

**Also affected.** If 2.25 (two-vehicle limit) is adopted, the handout's parking bullets should note the two-vehicle-per-apartment cap. Recommended addition: "Up to 2 vehicles per apartment may be registered and parked at the Project."

### 3.5 Handout Format

Source: Board review (Paul Reshke)

**Comment.** "I really like the format of the owner handout. I was struggling with how to develop a

succinct, user-friendly document."

**Existing text.** Not applicable — no change is sought.

**NO ACTION.** Recorded for completeness so the Board review is fully accounted for. No change requested or made.

## 4 Unit Modification Policy

Current version: NHOM-Unit-Modifications-Policy\_v2026-07-30A. **Not adopted.** The Board review contained no comments on this document.

### 4.1 New Section — Termite and Powderpost Beetle Treatment

*Source: Resident Manager (Molly Duncan), page 2*

**Comment.** "I wonder if we want to add that any untreated wood or cabinetry brought in to the condo must be treated for termites and powderpost beetles. This is common in many associations on Maui. It comes at a cost to the owner, but is a good proactive measure to protect the buildings."

**Existing text.** *There is none.* The comment is anchored to the Section 1 overview, but a search of the full policy confirms it contains **no pest-treatment provision of any kind**. This is an addition rather than an edit.

**CHANGE RECOMMENDED — new subsection.** The reasoning is sound and the economics are correctly allocated: the cost falls on the owner introducing the risk rather than on the Association that would bear the consequences. The buildings share wood framing, so material brought into one apartment is not a risk confined to that apartment.

**Recommended new subsection, placed in Section 3 (Approval Process) as 3.5, following 3.4 Indemnification:**

#### 3.5 Termite and Powderpost Beetle Treatment

Any untreated wood, millwork, cabinetry, or wood-framed furnishing brought into the Project as part of an approved modification must be treated for termites and powderpost beetles before installation, at the owner's sole cost. The owner must provide the Resident Manager with documentation of treatment from a licensed pest-control operator before the work is inspected under 3.3. The Association's buildings share wood framing; untreated material introduced into one apartment places other apartments at risk.

**Two drafting decisions, stated rather than assumed.** The subsection is placed in Section 3 rather than Section 4 (Contractors) because the obligation binds the owner, not the contractor — Section 3 is where conditions of approval and inspection live, so it becomes enforceable at inspection

under 3.3. And documentation from a licensed operator is required because a treatment requirement with no evidentiary step cannot be verified at inspection and would function as advice rather than as a rule.

## 5 Points Where the Board's Choice Is Consequential

Every recommendation in this document is a proposal the Board approves or rejects when it acts on the House Rules. This section does not repeat that. It collects the points where a recommendation rests on a judgment the Board may reasonably make differently, and states both the recommendation and the alternative, so the choice is visible rather than buried in an entry.

| # | Section    | Recommendation                                                                                                              | Alternative open to the Board                                                                              |
|---|------------|-----------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|
| 1 | 13.8       | <b>Retain the towing rule</b> ; the Resident Manager obtains the contract and signage (2.26)                                | Delete 13.8 entirely, per the Board review. <b>Do not</b> retain the rule without the contract and signage |
| 2 | 19.4       | <b>Twenty-four months</b> to bring a water heater into compliance, with transfer and renovation triggers (2.32)             | A longer or shorter period; a phase-in tied only to transfer                                               |
| 3 | 4.2        | Adopt the redraft, including the <b>ninety-day</b> disclosure threshold and the <b>six-occupancy</b> turnover trigger (2.6) | Different figures; both are recommendations, not derived values                                            |
| 4 | 6          | <b>Do not designate a smoking area</b> (2.9)                                                                                | Designate one — an exception in 6.2 and a table row                                                        |
| 5 | 5.2.1      | <b>Retain the 9:00 p.m.</b> quiet-hours start (2.7)                                                                         | 10:00 p.m., as in the 2003 rules                                                                           |
| 6 | 13.9       | Post <b>daily, 8:00 a.m. to 6:00 p.m.</b> at the car-wash area (2.27)                                                       | Any other schedule; it is posted, not written into the rule                                                |
| 7 | 9.9 / 11.4 | <b>Refer</b> the jacuzzi under-five exclusion and the gym age floor to counsel with the pool provision (2.16)               | Leave both as drafted pending a separate review                                                            |

**Two matters settled and deliberately not listed here.** The flat prohibition on water beds, spas and hot tubs at 8.7 (2.14) and the antenna prohibition at 8.3.2 (2.13) are settled recommendations, not open choices, and are not restated as alternatives. **No By-Laws amendment is required by anything in this document**, including the access provisions at 8.1.2.

Carried forward from earlier review and unchanged: House Rules 5.2.3 flooring versus By-Laws §8.3(g); 3.3 versus the 2009 Declaration Amendment §8(a); 13.1.2 second stall; Unit Modification Policy 2.3 solar; adoption of the Support Animal Policy and its Legal Reference.

## 6 Resident Manager Action Items

Operational items arising from this review. None is a document change.



| # | Item                                                                                                                                                                              | Arising from |
|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------|
| 1 | Procure and post camera signage at the Project entrance and in each monitored common area — <b>before</b> the House Rules are adopted, so 5.8.1 is accurate on its effective date | 2.8          |
| 2 | Procure a small health-notice placard for the jacuzzi                                                                                                                             | 2.21         |
| 3 | Obtain a towing contract from a reputable company and post the signage HRS §290-11 requires — 13.8 is unenforceable until both are in place                                       | 2.26         |
| 4 | Recommend days and hours for the car-wash area for Board approval                                                                                                                 | 2.27         |
| 5 | Confirm the arrangements for verifying pest-treatment documentation at inspection                                                                                                 | 4.1          |

## 7 Documents Required to Complete This Review

One item is genuinely blocked. Two others are recommended in full and would only be refined by producing the document; a fourth is a question for the Board review.

| # | Item                                                             | Status                                                                                                                                                                                                                   | Arising from       |
|---|------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| 1 | Water-leak policy adopted October 2024                           | <b>Blocks 2.15.</b> Reconciling specific rows of the maintenance-responsibility table against a policy not read would be guesswork                                                                                       | Board review, 2.15 |
| 2 | Board-adopted camera policy                                      | <b>Does not block.</b> 5.8.1 as recommended already references the policy; producing it would only allow a short summary of its terms to be added                                                                        | Board review, 2.8  |
| 3 | Counsel's position on age-based pool, jacuzzi and gym provisions | <b>Does not block 2.16</b> , which rests on the Fair Housing Act analysis. Needed before 9.9 and 11.4 are altered                                                                                                        | Both reviews, 2.16 |
| 4 | What the D102 approval actually covered                          | <b>Question for the Board review</b> , not a document request. Standard lanai screens have never required approval, so that approval presumably covered a screen enclosure, a screen door, or a non-standard replacement | Board review, 2.12 |

**On item 3.** Counsel's advice on age-based restrictions reaches this document only through two second-hand accounts, neither of which cites the governing law. The recommendation at 2.16 does not depend on those accounts — the Fair Housing Act familial-status analysis is independent — but a direct confirmation should be obtained before 9.9 and 11.4 are altered.

## 8 Summary of Dispositions

| Disposition                                              | Count |
|----------------------------------------------------------|-------|
| Change recommended                                       | 27    |
| No change — already addressed in the current draft       | 4     |
| No change — recommended retained, or recommended against | 2     |
| No change — required by law                              | 1     |
| No change — governing document                           | 2     |

| Disposition                                   | Count     |
|-----------------------------------------------|-----------|
| No change — document required                 | 1         |
| No change — Resident Manager position governs | 1         |
| No change — none requested                    | 1         |
| No action — recorded only                     | 1         |
| <b>Total entries</b>                          | <b>40</b> |

No entry is disposed of on the ground that it requires Board approval. Where a comment was well placed, language is proposed; where it was not, the reason is stated on the merits.

### By source.

| Source                                           | Comments | Entries                                                                                   | Change recommended                |
|--------------------------------------------------|----------|-------------------------------------------------------------------------------------------|-----------------------------------|
| Resident Manager (Molly Duncan)                  | 11       | 11, plus 2 where a handout comment is applied to the policy, plus 8.1.2 agreed in meeting | 10 of 11 comments, plus 8.1.2     |
| Board review (Paul Reshke)                       | 28       | 24 raised by the Board review alone, plus 4 shared with the Resident Manager              | 12 of 24 Board-review-only points |
| Consequential                                    | —        | 1                                                                                         | 1                                 |
| Document-wide drafting convention (Robert Sutor) | —        | 1                                                                                         | 1                                 |

Four sections drew comment from both reviewers — 5.8.1 cameras, 9.1 pool supervision, 9.3 pool guests, and 13.8 towing — and are treated once, with both comments shown. Section 8.1.2 was agreed between the Resident Manager and the President in meeting and absorbs the Board review's comment on the same section. The two applied entries (9.6 and 11.6) carry a Resident Manager handout comment into the policy so the two documents do not diverge. The single consequential entry (3.4) follows from a policy change rather than from any comment.

**Where Molly and Paul conflicted, Molly prevails**, per the order of precedence in 1.2 — at 9.3 (pool guest limit) and 13.8 (towing). Neither conflict engaged law or a governing document.